

Clauses Incorporated by Reference

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements
JAN 2017

52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards JUN 2020

52.204-13 System for Award Management Maintenance OCT 2018

52.204-14 Service Contract Reporting Requirements OCT 2016

52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred,
Suspended, or Proposed for Debarment JAN 2025

52.209-10 Prohibition on Contracting with Inverted Domestic Corporations NOV 2015

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services SEP 2023

52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services NOV
2023

52.219-6 Notice of Total Small Business Set-Aside NOV 2020

52.219-28 Post-Award Small Business Program Rerepresentation JAN 2025

52.222-3 Convict Labor June 2003

52.222-36 Equal Opportunity for Workers with Disabilities JUN 2020

52.222-41 Service Contract Labor Standards AUG 2018

52.222-42 Statement of Equivalent Rates for Federal Hires MAY 2014

52.222-50 Combating Trafficking in Persons OCT 2025

52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026 JAN 2022

52.222-62 Paid Sick Leave Under Executive Order 13706 JAN 2022

52.222-90 Addressing DEI Discrimination by Federal Contractors

52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving MAY 2024

52.227-1 Authorization and Consent JUN 2020

52.232-33 Payment by Electronic Funds Transfer—System for Award Management OCT 2018

52.232-39 Unenforceability of Unauthorized Obligations JUN 2013

52.232-40 Providing Accelerated Payments to Small Business Subcontractors MAR 2023

52.233-3 Protest after Award AUG 1996

52.233-4 Applicable Law for Breach of Contract Claim OCT 2004

52.240-91 Security Prohibitions and Exclusions DEC 2025

52.240-93 Basic Safeguarding of Covered Contractor Information Systems DEC 2025

1452.280-2 Notice of Indian economic enterprise set-aside JUL 2013

Clauses Incorporated by Full Text

1452.201-70 AUTHORITIES AND DELEGATIONS SEP 2011

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

(2) Waive or agree to modification of the delivery schedule;

(3) Make any final decision on any contract matter subject to the Disputes Clause;

(4) Terminate, for any reason, the Contractor's right to proceed;

(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph

(d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract

action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of Clause)

**DOI-AAAP-0028 ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS-
INVOICE PROCESSING PLATFORM (IPP) (FEB 2021)**

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

'Payment request' means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is:

<https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

Contractors Invoice

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far>

Department of the Interior Acquisition Regulation: <https://www.acquisition.gov/diar>

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES NOV 2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

Provisions Incorporated by Reference

52.204-7 System for Award Management NOV 2024

52.240-90 Security Prohibitions and Exclusions Representations and Certifications DEC 2025

Provisions Incorporated by Full Text

52.212-2 Evaluation—Commercial Products and Commercial Services NOV 2021

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Basis for Award (Comparative Evaluation)

1. General:

The Government will award a purchase order resulting from this solicitation to the responsible quoter whose quote is most advantageous to the Government, price and evaluation factors identified below. This acquisition is being conducted under the Acquisition of Commercial Products and Commercial Services of FAR Part 12.

2. Evaluation Process:

In accordance with FAR 12.203(c)(2) ([FAR Overhaul - Part 12 | Acquisition.GOV](#)) the Government will perform a comparative evaluation of quotes. A comparative evaluation is defined as the act of comparing one quote to another in a side-by-side fashion.

- No Formal Scoring: The Government will not use formal evaluation plans, precise weighting, or adjectival scoring (e.g., "Excellent" or "Blue").
- Direct Comparison: IAW FAR 12.203(b), Quotes will be compared against one another to determine which provides the best value. The Government will use their professional business judgment to determine if a quote's technical superiority or more favorable terms (e.g., faster delivery, longer warranty) justifies a higher price. However, the Government may first perform a price analysis. If the lowest-priced quote provides the best value, the Government may award to that quoter without further comparison to other quotes.

3. Evaluation Factors:

The following factors will be used to evaluate quotes:

1. Technical Capability: Ability to meet the specifications in the Statement of Work. (narrative response of no longer than 5 pages).

(A) Technical approach narrative must demonstrate the offeror's understanding of the project requirements, the scope of work, and the contract documents. Identify and address the specific needs and unique requirements for the scope, location, and schedule of this project.

(B) Demonstrate understanding of how to organize, staff, and manage the contract, as well as

the means and methods that will be used to accomplish the contract requirements.

(C) Demonstrate an understanding of project requirements for safety, sustainability, energy efficiency and risk management.

(D) Provide a schedule to show how work described in the SOW will be completed within the Period of Performance.

2. Relevant Experience: Provide a list of at least two (2) jobs completed or ongoing, in the past five (5) years in which you acted as a Prime Contractor or Sub-Contractor responsible for providing similar/services. Each job description must contain the following information: •The name of job •The job start and end dates •A brief description of services provided and the location/size of the job •The owner of job •The owner's Contact information •The total dollar value of the job.

3. Key Personnel: Key Personnel as noted in Paragraph 1.7 of the PWS.

4. Price: Total evaluated price.

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference FEB 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far>

Department of the Interior Acquisition Regulation: <https://www.acquisition.gov/diar>

(End of provision)

52.252-5 Authorized Deviations in Provisions NOV 2020

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)